

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3130 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Josh West

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3130

By: West (Kevin), Olsen,
Woolley, Adams, and
Crosswhite Hader of the
House

and

Bullard of the Senate

FLOOR SUBSTITUTE

An Act relating to gender transition procedures;
amending Section 1, Chapter 150, O.S.L. 2023 (63 O.S.
Supp. 2025, Section 2607.1), which relates to health
services for minors; clarifying definition; providing
definition; including referrals and aiding and
abetting; providing for no limitation on punitive
damages; exempting immunity protection for employees
in certain actions; providing for codification; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 150, O.S.L.
2023 (63 O.S. Supp. 2025, Section 2607.1), is amended to read as
follows:

Section 2607.1. A. As used in this section:

1 1. "~~Child~~" or "minor" means any person under eighteen (18)
2 years of age;

3 2. a. "Gender transition procedures" means the following
4 medical or surgical services performed for the purpose
5 of attempting to affirm the minor's perception of his
6 or her gender or biological sex, if that perception is
7 inconsistent with the minor's biological sex:

8 (1) surgical procedures that alter or remove physical
9 or anatomical characteristics or features that
10 are typical for the individual's biological sex,
11 including, but not limited to, genital or chest
12 surgeries, or

13 (2) puberty-blocking drugs, cross-sex hormones, or
14 other drugs to suppress or delay normal puberty
15 or to promote the development of feminizing or
16 masculinizing features consistent with the
17 opposite biological sex.

18 b. Gender transition procedures do not include:

19 (1) ~~behavioral health care services or mental health~~
20 ~~counseling,~~

21 ~~(2)~~ medications to treat depression and anxiety,
22 ~~(3)~~

23 (2) medications prescribed, dispensed, or
24 administered specifically for the purpose of

1 treating precocious puberty or delayed puberty in
2 that patient,

3 ~~(4)~~

4 (3) services provided to individuals born with
5 ambiguous genitalia, incomplete genitalia, or
6 both male and female anatomy, or biochemically
7 verifiable disorder of sex development (DSD),
8 including but not limited to:

- 9 (a) 46,XX DSD,
- 10 (b) 46,XY DSD,
- 11 (c) sex chromosomes DSDs,
- 12 (d) XX or XY sex reversal, and
- 13 (e) ovotesticular disorder,

14 ~~(5)~~

15 (4) the treatment of any infection, injury, disease,
16 or disorder that has been caused by or
17 exacerbated by the performance of gender
18 transition procedures, whether or not the gender
19 transition procedure was performed in accordance
20 with state and federal law,

21 ~~(6)~~

22 (5) the treatment of any physical injury or illness
23 that would, as certified by a physician, place
24 the individual in imminent danger of death or

1 impairment of a major bodily function unless such
2 treatment is performed, or

3 ~~(7)~~

4 (6) the provision of puberty-blocking drugs or cross-
5 sex hormones to a minor currently receiving such
6 drugs or hormones as of ~~the effective date of~~
7 ~~this act~~ May 1, 2023, for a period of not more
8 than six (6) months solely for the purpose of
9 assisting the minor with gradually decreasing and
10 discontinuing use of the drugs or hormones;

11 3. "Health care provider" means a physician, physician
12 assistant, Advanced Practice Registered Nurse, psychologist,
13 counselor, therapist, social worker, behavioral health practitioner,
14 or any other person who is licensed, certified, or otherwise
15 authorized by the laws of this state to administer health care in
16 the ordinary course of the practice of his or her profession; and

17 4. "State funds" includes funds appropriated by the Legislature
18 or derived from any Oklahoma government agency or political
19 subdivision.

20 B. A health care provider shall not knowingly ~~provide~~ perform,
21 attempt to perform, or refer a child for a gender transition
22 ~~procedures to any child procedure.~~

23 C. No person shall knowingly aid or abet the performance or
24 referral of a gender transition procedure on a child.

1 ~~C.~~ D. A health care provider found in violation of subsection B
2 of this section shall, upon an adverse ruling by the provider's
3 respective licensing board, be guilty of unprofessional conduct.
4 Disciplinary proceedings against the health care provider may be
5 commenced at any time after the commission of such offense.

6 ~~D.~~ E. A health care provider who violates subsection B of this
7 section shall, upon conviction, be guilty of a felony. Prosecution
8 for a criminal violation of subsection B of this section shall be
9 commenced not later than the date on which the child attains the age
10 of forty-five (45) years.

11 ~~E.~~ F. 1. The parent, legal guardian, or next friend of a child
12 to whom a health care provider has provided one or more gender
13 transition procedures in violation of subsection B of this section
14 may bring a civil action against the health care provider. The
15 parent, legal guardian, or next friend shall bring a claim for the
16 violation no later than the date on which the child attains the age
17 of majority.

18 2. A child to whom a health care provider has provided one or
19 more gender transition procedures may bring an action throughout his
20 or her minority through a parent, legal guardian, or next friend,
21 and may bring an action in his or her own name upon reaching
22 majority at any time until the date on which the child attains the
23 age of forty-five (45) years.

1 3. The court in such action may award compensatory damages,
2 punitive damages, injunctive relief, or any other appropriate
3 relief. A plaintiff may be awarded punitive damages in any amount
4 the jury deems appropriate in an action against a defendant who has
5 violated this act. Additionally, the court shall award court costs
6 and reasonable attorney fees to a prevailing party who establishes a
7 violation of this section.

8 4. Notwithstanding any other provision of law, an action under
9 this subsection may be commenced, and relief may be granted, in a
10 judicial proceeding without regard to whether the person commencing
11 the action has sought or exhausted available administrative
12 remedies.

13 ~~F.~~ G. The Attorney General may bring an action to enforce
14 compliance with this act. Nothing in this act shall be construed to
15 deny, impair, or otherwise affect any right or authority of the
16 Attorney General, the state, or an agency, officer, or employee of
17 the state to institute or intervene in any action or proceeding.

18 SECTION 2. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 173 of Title 51, unless there is
20 created a duplication in numbering, reads as follows:

21 Employees who violate Section 2607.1 of Title 63 of the Oklahoma
22 Statutes are exempt from the immunity protections of The
23 Governmental Tort Claims Act.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

60-2-17237 TJ 03/25/26